

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

June 22, 2020

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:07 p.m. via electronic conference meeting. Attending electronic conference meeting were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Dr. Mark Rinne, Scott Roybal, Dicky Shanor and Jeff White. Also attending: Kris Jones, City Clerk.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Dr. Rinne, and pursuant to support received by Mr. Case and Mr. Shanor, agenda item #22 (a) was removed from the Consent Agenda. Upon request by Dr. Rinne, and pursuant to support received by Mr. Cook and Mr. Roybal, agenda item #22 (b) was removed from the Consent Agenda. Mr. Luna moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on June 8, 2020. Motion (per Consent Agenda) carried.

[CA] Minutes from Special Meetings of the Governing Body on May 28, June 11, June 15, and June 16, 2020. Motion (per Consent Agenda) carried.

ORDINANCE – 3rd READING – Granting a Non-Exclusive Franchise to Union Telephone Company within the rights-of-way of the City of Cheyenne, Wyoming. Reporting for Finance Committee, Mr. Luna moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#4315)

ORDINANCE – 2nd READING – Amending Section 2.76.020, Members-Terms-Vacancies, of Chapter 2.76, Downtown Development Authority, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming. Amber Ash, Executive Director of the Downtown Development Authority, advised she was available for questions. Upon inquiry, Ms. Ash explained that the DDA Board received applications from three qualified members, and with only two available seats open on the Board, they are requesting to expand the number of members from 9 to 10. Reporting for Public Services Committee, Mr. Case moved to approve on second reading, seconded by Mr. Luna. Comment was made on the need to expand the membership based on submitted qualified applications and the history of board member uncompleted terms. Ms. Ash reported that per State Statute, the board can have a total of 11 members. Mayor Orr cautioned having an even numbered membership. Ms. Ash noted that items

considered for approval would require 6 votes to pass. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”.

ORDINANCE – 2nd READING – Amending the official zoning map of the City of Cheyenne changing the zoning classification from LR (Low-Density Residential) to MUR (Mixed-Use Residential Emphasis) for property generally located northeast of the intersection of Kelley Drive and Old Faithful Road. Tom Jacobson, #1 Properties, owner representative, requested consideration for approval. Kari Happold, Rustic Wyoming Realty, advised they will be purchasing the office space for use by the real estate company and are requesting approval which will allow them to expand the business. Mark Christensen, Planning and Development Department, advised he was available to answer questions. Mr. Case moved to approve on second reading, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Amending the official zoning map of the City of Cheyenne changing the zoning classification from LI (Light Industrial) to MUB (Mixed-Use Business Emphasis) for property generally located northeast of the intersection of west 21st Street and Reed Avenue. It was noted that Matt Ashby, representative for the property owner, was available for any questions. Mr. Case moved to approve on second reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 1st READING – Amending the official zoning map of the City of Cheyenne changing the zoning classification from CB Community Business to MUB Mixed-Use Business Emphasis for a portion of the SE1/4 of Section 33, T.14N., R66W, 6th P.M., Cheyenne, Wyoming (located south of and adjacent to Sparks Road, west of Ridge Road) (Sponsor – Mr. Case) – referred to Public Services Committee.

ORDINANCE – 1st READING – Amending Chapter 5.04, Business Licenses, Generally, and Chapter 5.08, Business License fees, and creating a new Chapter 5.77, Nicotine Product Sales, of Title 5, Business Licenses and Regulations; amending Chapter 8.64, Smoking in Public Places, of Title 8, Health and Safety; and amending Chapter 9.16, Offenses by or Against Minors, of Title 9, Public Peace and Welfare, of the Municipal Code of the City of Cheyenne, Wyoming. (Sponsor – Mr. White) – referred to Finance Committee.

ORDINANCE – 1st READING – Amending Chapter 10.52, Stopping, Standing and Parking Generally, of Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming. (Sponsor – Mr. Case) – referred to Public Services Committee.

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2020 Budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 & 16-4-113. Motion (per Consent Agenda) carried. (#6066)

[CA] RESOLUTION – Directing all sale proceeds received from the disposal of the City-Owned real property located at 610 West 7th Street, Cheyenne, Wyoming, to be deposited into the “Real Property Revolving Fund”. Motion (per Consent Agenda) carried. (#6067)

[CA] RESOLUTION – Adopting to the future land use map in PlanCheyenne, the Master Plan for the City of Cheyenne and the Comprehensive Plan for portions of Laramie County, amending the Land Use Category for property generally located along east Lincolnway generally between Henderson Drive and Ridge Road from Urban Residential and Public/Quasi-Public to Mixed-Use Residential and from Community Business to Mixed-Use Commercial. Motion (per Consent Agenda) carried. (#6068)

[CA] RESOLUTION - Authorizing the City Treasurer to discharge uncollectible debts in the amount of \$26,901.43 for the Board of Public Utilities pursuant to W.S. §16-4-502. Motion (per Consent Agenda) carried. (#6069)

[CA] RESOLUTION – Creating a Special District for ‘Cheyenne Days – Legendary Nights Events’, July 17, 2020 to July 26, 2020, in which the possession of open containers is permitted within the Downtown District Boundaries. (Sponsor – Mr. Roybal) – referred to Finance Committee.

[CA] Grant Agreement between the City of Cheyenne, Office of Youth Alternatives Foster Grandparent Program and the Wyoming Department of Health, Aging Division in the amount of \$28,272.00 for services provided to the senior volunteers. (State of Wyoming Grant) – referred to Finance Committee.

[CA] Industrial and Economic Development Services Agreement between the City of Cheyenne and the Cheyenne/Laramie County Corporation for Economic Development (LEADS). (General Fund) – referred to Finance Committee.

[CA] A Section 5307 COVID-19 Emergency Relief for Operations Grant Agreement between the Federal Transit Administration and the City of Cheyenne to fund Transit operations and purchase of PPE related to COVID-19. (5307 CARES Act Grant) – referred to Finance Committee.

[CA] A Coronavirus Aid Relief, and Economic Security (CARES) Act Grant Agreement between the Federal Transit Administration and the City of Cheyenne to fund Transit operations. (5307 CARES Act Grant) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #6960 between the City of Cheyenne and Reiman Corp. for the Christensen Railroad Overpass & Corridor Project for cost impacts associated with unforeseen site conditions which required design and construction modifications (6th Penny Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$491,363.64). (#6960)

[CA] Contract Modification #1 to Contract #7155 Sponsorship Agreement between the City of Cheyenne and Spradley Barr Toyota. (revenue to the City) – referred to Finance Committee.

[CA] Contract Modification #3 to Contract #6885 between the City of Cheyenne and Simon Contractors for the 2018 Mountain Road and 20th Street Pavement Rehabilitation project to

provide additional funds for unforeseen preparatory work to the underlying road surface. (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-23-20 for One (1) New 2019-2020 Daihatsu Hi-Jet S510P Mini-Truck for the City of Cheyenne, Cheyenne Botanic Gardens (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (accepted bid from Woody's Mini Truck, Poplar Grove, IL, in an amount not to exceed \$23,584.00).

[CA] Consideration of Bid #E-26-20 for furnishing one (1) new 2020-2021 Motorized Articulated Trash Compactor with straight blade and heavy duty trash guarding for the City of Cheyenne Landfill. (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-17-20 for furnishing one Panasonic PT-RZ21K Projector with lens and accessories for the City of Cheyenne Civic Center. (Recreation Program Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-14-20 for a contract between the City of Cheyenne and Simon Contractors for the Prairie Avenue & Frontier Mall Drive Intersection Project. (2015-2018 1% Sales Tax) – referred to Finance Committee.

Transfer of retail liquor license application filed with the City Clerk's Office for Big D Oil Co., d/b/a Big D Oil #29, 100 North Greeley Hwy., Cheyenne, Wyoming (license currently held by Appaloosa Enterprises LLC d/b/a Sanford's Grub & Pub). Mr. Luna moved to approve, seconded by Mr. White. Comment was made related to retail liquor licenses being utilized by convenience stores and how it is the least effective use of that type of license. As there are currently no available retail liquor licenses, they are an asset to the city and should be utilized in the best way possible to promote economic development. Motion carried. Voting "yes" – Mr. Esquibel, Mr. Laybourn, Mr. Luna, Mayor Orr, Mr. Shanor and Mr. White. Voting "no" – Mr. Case, Mr. Cook, Dr. Rinne and Mr. Roybal.

Bar and grill liquor license application filed with the City Clerk's Office for Appaloosa Enterprises, LLC d/b/a Sanford's Grub & Pub, 115 E. 17th St., Cheyenne, Wyoming. Clyde Mead, Big D Oil, speaking on the previous agenda item (transfer of retail liquor license application) provided information relating to staff training relating to meeting state and local liquor licensing regulations and reported customers have requested the service at the south Big D Oil location. Mr. Luna moved to approve, seconded by Mr. Case. Motion carried. Voting "yes" – all members of the governing body.

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Reappointments of Jordan Evans, Terry Roker, Jennifer Lundberg and Barbara Fecht to the Public Transit Advisory Board; Lieutenant Eric Kent, Lieutenant David Janes, Kathy Emmons, Kimberly Skoutary-Johnson and Carla Thurin to the Laramie County Juvenile Service Joint

Powers Board; Dr. Jasper James Chen to the Cheyenne/Laramie County Economic Development Joint Powers Board; Barry Sims, Tyler McLachlan and Tony O'Brien to the Tourism Promotion Joint Powers Board. Mr. Luna moved to approve, seconded by Mr. Roybal. Motion carried. Voting "yes" - all members of the governing body with the exception of Mayor Orr who did not vote (mayoral appointments).

Appointments of Kristina Richardson and Molly Palmer to the Mayor's Council for People with Disabilities. Mr. Luna moved to approve, seconded Mr. Roybal. Motion carried. Voting "yes" - all members of the governing body with the exception of Mayor Orr who did not vote (mayoral appointments).

Under other business:

Mr. White referenced a recent letter to the editor in the Wyoming Tribune Eagle that was complementary of work performed by the City Forestry crews and arborists that were sent to Laramie to help with tree issues after a damaging snow storm. Mr. White expressed appreciation to the DDA, Thankful Thursdays and Lynn Buys Houses for the recent 'Summertime on the Streets' event, noting he is unaware of any open container issues associated with the event and that downtown businesses were appreciative for additional business. Mayor Orr echoed Mr. White's comments regarding appreciation for the City's Forestry crew.

Mr. Esquibel advised he had been contacted by citizens who expressed concern relating to a recent Police and Community Together meeting who feel forums of this nature should not be held at Police Headquarters and instead in a neutral location. Mr. Esquibel advised a forum has been scheduled at the Laramie County Library on July 18th. Up inquiry, Mr. Esquibel advised no law enforcement members will be present, elected officials will attend by invitation only, it will be open to the public and all panelists have been predetermined. Mayor Orr reported the local Chapter of NAACP will meet on Saturday, June 27th from 10:00 a.m. to Noon at Element Church to allow for marginalized citizens voices to be heard.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:43 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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